

26STCV16516 26STCV16516

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Case Number: 26STCV16516 Hearing Date: August 31, 2026 Dept: 509

MOTION TO QUASH SERVICE OF THE COMPLAINT

MOVING PARTY: Defendant Julia Wong

RESPONDING PARTY(S): Plaintiff Erez Atava

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Erez Atava (Plaintiff) brings this action against defendant Julia Wong (Defendant) arising from a dispute regarding the Operating Agreement of J and E Holdings, LLC. Plaintiff brings causes of action for: (1) specific performance; (2) partition of real property by sale; and (3) declaratory relief.

Defendant now moves to quash the service of the summons and complaint. Plaintiff opposed.

TENTATIVE RULING:

Defendant's Motion to Quash is DENIED.

Defendant is to file a response (other than a motion to quash) to the Complaint within 30 days.

Plaintiff to give notice, unless waived.

DISCUSSION:

Motion to Quash

A. Legal Standard

"A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her" (Code Civ. Proc., § 418.10, subd. (a).) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[T]he filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.) "A court lacks jurisdiction over a party if there has not been proper service of process." (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 808.)

B. Analysis

On June 24, 2026, Defendant was allegedly served by substitute service on her home. (6/25/26 Proof of Substitute Service.)

Code of Civil Procedure, section 415.20 provides that "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served . . . a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail." (Code Civ. Proc., § 415.20(b).)

There is no dispute the address where the individual was served was Defendant's house. (Mot. at p. 3:13.) Instead, Defendant argues that the substitute service was ineffective because the individual that received the summons and complaint was a minor and the process server failed to demonstrate due diligence.

First, Craig Erickson (Erickson) is a registered process server that made all service attempts at Defendant's residence. (Erickson Decl. ¶1.) In support of Plaintiff's opposition, Erickson attests that he "made a total of 10 attempts to personally serve defendant at 4349 Park San Vicente, Calabasas, CA 91302 ("Residence") between May 31, 2026 and June 24, 2026." (Erickson Decl. ¶3.) This demonstrates sufficient due diligence to warrant substitute service.

Next, Defendant alleges that Erickson only served her minor child on June 24, 2026, and therefore, service was improper. However, Erickson declares "[d]uring my successful service attempt on June 24, 2026, an elderly lady answered the door at the Residence and I asked if JULIA WONG was home. However, there appeared to be a language barrier because the elderly lady did not seem to understand me. Then, a female teen came to the door and spoke with me instead. I explained I was there to serve the summons on JULIA WONG. The teen approached me and took the summons, complaint, and other service documents and handed them to elder woman in my presence, who I presumed was her grandmother." (Erickson Decl. ¶4.) In reply, Mary Wang, the elder woman identified by Erickson, declares "I was never made aware of any attempt to serve my daughter or me with legal papers of any kind. I did learn that my minor granddaughter Isabel was given a copy of documents at my daughter Julia's home, while I was visiting. But I was not present and did not see her receive any such documents. Nor did Isabel give any such documents to me. I am five feet tall, weigh 135 pounds, and I have always dyed my hair brown. I live in London. I do not have any trouble speaking or understanding English." (Mary Wang Decl. ¶¶2-4.)

The Court finds Erickson's declaration persuasive. "Evidence Code section 647 provides that a registered process server's declaration of service establishes a presumption that the facts stated in the declaration are true." (Rodriguez v. Cho¿(2015) 236 Cal.App.4th 742, 750, referencing American Express Centurion Bank v. Zara¿(2011) 199 Cal.App.4th 383, 390.) As Erickson is a register process server, his declaration is given a presumption of truth. While the declarations in support of Defendant's motion contradict his factual assertions, this Court is not required to accept self-serving evidence that contradicts the process server's declaration. (Rodriguez, supra, 236 Cal.App.4th at p. 751.) Therefore, Defendant's evidence does not sufficiently rebut the presumption that Erickson's declaration is factual.

Further, even without the rebuttable presumption in favor of the Erickson Declaration the Court would still conclude that Erickson sufficiently served Defendant by substitute service. The evidence preponderates that the summons was served by

leaving a copy of the summons and complaint at the Defendant's house, "in the presence of a competent member of the household" (Mary Wang) who is over the age of eighteen. See, CCP §415.20 (b). (Bold added.) This conclusion is also in line with the policy that "[s]tatutes governing substitute service shall be 'liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant.'" Hearn v. Howard, (2009) 177 Cal.App.4th 1193, 1201 [internal citations omitted].)

Accordingly, Defendant's Motion to Quash is DENIED.

IT IS SO ORDERED.

Dated: August 31, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.